

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

MSC MEDITERRANEAN SHIPPING CO. SA, *Respondent*.

DOCKET NO. 23-12

Served: June 18, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ENTERING PROTECTIVE ORDER AND SCHEDULING JOINT STATUS REPORT

On June 13, 2024, the parties filed a Joint Motion for Entry of Protective Order (“Motion”) and attached the proposed protective order. The motion states that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1. Moreover, the motion states that the parties “jointly drafted and agreed to the terms of the Protective Order....” *Id.*

The Initial Order in this proceeding states that “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5. The proposed protective order is a stipulation between the parties and is reasonable. 46 C.F.R. § 502.141(l).

The parties have established good cause to enter the protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as an order in this proceeding.

On June 14, 2024, the parties jointly submitted a request (this was not phrased as a motion) for leave to file a joint status report (“JSR”) on July 12, 2024, regarding “the status of discovery and any unresolved disputes....” Joint Submission at 1. The parties assert that they “have corresponded extensively and in detail regarding each other’s Objections to the Requests and have met and conferred on that topic via videoconference.” *Id.* at 2. The Joint Submission provides no detail regarding the discovery requests on which the parties disagree.

The Scheduling Order of May 9, 2024, set June 14, 2024, as the deadline for “submission of any unresolved disputes concerning initial RFPs, interrogatories, and objections and responses thereto after conferral.” Scheduling Order at 2. This deadline was proposed by the parties and adopted in the Scheduling Order. *Id.* The Joint Submission states that the parties have

extensively conferred regarding discovery issues, but skirts the issue of the parties not meeting their own deadline to submit discovery disputes for resolution.

The parties' request to file a JSR "to update the Presiding Officer on the Parties' progress in discovery, any discovery disputes that remain unresolved at that time, and any potential discovery-related motion practice that may be necessary" was filed on the day they were scheduled to submit their unresolved disputes, presumably in the form of a motion to compel. Joint Submission at 2-3; Scheduling Order at 2. While a JSR is helpful, it does not take the place of a motion to compel. The parties seek an additional month—not to submit a discovery motion, but to submit a JSR in which they will inform the undersigned whether such a motion may be filed. This is not reasonable, particularly when the proposed JSR could result in delaying the filing of discovery motions and impacting the already lengthy discovery period.¹

Accordingly, since the parties have not filed a motion to amend the scheduling order or a motion to compel, they have been meeting and conferring regarding discovery responses since about June 3, 2024, and they have not provided good cause for prolonging the filing of a JSR that *may* be followed by one or more motions to compel, a JSR will be added to the existing schedule but will be due on an earlier date. The parties are hereby **ORDERED** to submit a JSR by July 1, 2024. The JSR should set forth what discovery issues remain between the parties, whether either party intends to file a motion to compel, and whether the parties are on track to meet the other deadlines in the schedule. The parties should file discovery motions by July 12, 2024, or earlier, if practicable.

The parties are encouraged to review Commission Rule 502.150 and the Initial Order for instructions on filing a motion to compel if such a motion is necessary. Initial Order at 3; 46 C.F.R. § 502.150. Arguments that cite to legal authority and explain the relevance or lack of relevance to specific allegations or defenses in the pleadings are preferred. A status conference may be scheduled after receipt of the motion(s) and response(s) to the motion(s) to discuss the outstanding issues. The parties should note in their motion(s) or response(s) if there are dates they would not be available for a status conference during the last two weeks of July.



Linda S. Harris Crovella
Administrative Law Judge

¹ The parties are reminded that the deadline for substantial completion of document and ESI production pursuant to the initial requests is scheduled for July 31, 2024, a date that will not be feasible if motions to compel are filed sometime after July 12, 2024.